

26PSCV01523 26PSCV01523

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-27

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Case Number: 26PSCV01523 Hearing Date: August 27, 2026 Dept: G

Plaintiff/Petitioner

Xiaodi Xu's Petition for Approval of Compromise of Claim or Action or

Disposition of Proceeds of Judgment for Plaintiff/Claimant Weiqi Han, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Xiaodi Xu's Petition for Approval of Compromise of Claim or Action or

Disposition of Proceeds of Judgment for Plaintiff/Claimant Weiqi Han, a Minor is

CONTINUED.

BACKGROUND

This

is a personal injury action arising out of a motor vehicle collision. On June 18, 2024, defendant Adrian Anthony Espinoza (Espinoza), an employee of defendants J C Tuckmar, Inc. (J C Tuckmar) and Joseph B. Volk (Volk) allegedly collided his vehicle into that containing plaintiff/petitioner Xiaodi Xu (Xu) and his minor child, plaintiff/claimant Weiqi Han (Han).

On April

28, 2026, Xu and Han (collectively, Plaintiffs) filed the Complaint. On June 9, 2026, Plaintiffs filed the operative Amended Complaint, alleging causes of action for (1) motor vehicle and (2) general negligence.

On

July 20, 2026, the parties informed the court that they settled the case. On August 3, 2026, Xu filed this petition for approval of minor's compromise, which is unopposed.

The

petition is set for hearing on August 27, 2026.

ANALYSIS

Xu

seeks the court's approval of a settlement reached between all parties. For the following reasons, the petition is CONTINUED.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob.

Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air*

Lines Co. (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the

judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.

(Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, “unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney’s fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.” (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, “[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.” (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

As

a preliminary matter, Xu failed to include a proof of service with the petition. “Before filing any document, a party must serve, by any method permitted by the Code of Civil Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule. The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . . The proof must name each party represented by each attorney served.” (Cal. Rules of Court, rule 8.817(a)(1)–(a)(2).)

Here,

Xu did not attach a proof of service to the petition or file a separate proof of service with the petition. There were no appearances for defendants at the previous hearing such that their attendance would give them notice of the petition, not every party named in the Amended Complaint is a party to the settlement agreement, and there is no opposition contesting the petition. Thus, the court cannot proceed to the merits of the petition because interested parties may not have received notice.

Therefore,

the petition for approval of minor's compromise is CONTINUED, and Xu is ORDERED to SERVE the PETITION on Espinoza, J C Tuckmar, and Volk if they have not done so already, and is further ORDERED to FILE a PROOF OF SERVICE.

CONCLUSION

For

these reasons, the petition for expedited approval of minor's compromise is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Plaintiff/petitioner

Xiaodi Xu is ORDERED to SERVE the PETITION on defendants Adrian Anthony Espinoza, J C Tuckmar, Inc., and Josph B. Volk if they have not done so already, and plaintiff/petitioner Xiaodi Xi is further ORDERED to FILE a PROOF OF SERVICE.